

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE	OF	PAGES
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER <i>(If applicable)</i>	
6. ISSUED BY		CODE		7. ADMINISTERED BY <i>(If other than Item 6)</i>		CODE	
8. NAME AND ADDRESS OF CONTRACTOR <i>(Number, street, county, State and ZIP Code)</i>				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED <i>(SEE ITEM 11)</i>	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED <i>(SEE ITEM 13)</i>	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: <i>(Specify authority)</i> THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES <i>(such as changes in paying office, appropriation data, etc.)</i> SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER <i>(Specify type of modification and authority)</i>

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER <i>(Type or print)</i>		16A. NAME AND TITLE OF CONTRACTING OFFICER <i>(Type or print)</i>	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
_____ <i>(Signature of person authorized to sign)</i>		_____ <i>(Signature of Contracting Officer)</i>	

Previous edition unusable

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Section 00 72 00 - General Conditions

FAR 52.228-5, Insurance-Work on a Government Installation (Jan 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

It is the contractor's responsibility to obtain and maintain insurance coverage at or above the minimum limits required for the scope and value of work being performed under this contract

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective-

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of Clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-2	Security Requirements.	Mar 2021		
52.204-3	Taxpayer Identification.	Oct 1998		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.211-13	Time Extensions.	Sep 2000		
52.211-18	Variation in Estimated Quantity.	Apr 1984		
52.214-18	Preparation of Bids-Construction.	Apr 1984		
52.214-19	Contract Award-Sealed Bidding-Construction.	Aug 1996		

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52.214-26	Audit and Records-Sealed Bidding.	Jun 2020
52.214-29	Order of Precedence-Sealed Bidding.	Jan 1986
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020
52.219-8	Utilization of Small Business Concerns.	Jan 2025
52.219-9	Small Business Subcontracting Plan.	Jan 2025
52.219-16	Liquidated Damages-Subcontracting Plan.	Sep 2021
52.222-4	Contract Work Hours and Safety Standards -Overtime Compensation.	May 2018
52.222-6	Construction Wage Rate Requirements.	Aug 2018
52.222-8	Payrolls and Basic Records.	Jul 2021
52.222-10	Compliance with Copeland Act Requirements.	Feb 1988
52.222-11	Subcontracts (Labor Standards).	May 2014
52.222-12	Contract Termination-Debarment.	May 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014
52.222-14	Disputes Concerning Labor Standards.	Feb 1988
52.222-15	Certification of Eligibility.	May 2014
52.222-30	Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Method).	Aug 2018
52.222-35	Equal Opportunity for Veterans.	Jun 2020
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020
52.222-37	Employment Reports on Veterans.	Jun 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010
52.222-41	Service Contract Labor Standards.	Aug 2018
52.222-50	Combating Trafficking in Persons.	Nov 2021
52.222-54	Employment Eligibility Verification.	Jan 2025
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Jan 2022
52.222-62	Paid Sick Leave Under Executive Order 13706.	Jan 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024
52.223-23	Sustainable Products and Services.	May 2024
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021
52.226-7	Drug-Free Workplace.	May 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-1	Authorization and Consent.	Jun 2020
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007
52.228-2	Additional Bond Security.	Oct 1997
52.228-5	Insurance-Work on a Government Installation.	Jan 1997
52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022
52.228-14	Irrevocable Letter of Credit.	Nov 2014
52.228-17	Individual Surety-Pledge of Assets (Bid Guarantee).	Feb 2021
52.229-4	Federal, State, and Local Taxes (State and Local Adjustments).	Feb 2013
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020
52.232-8	Discounts for Prompt Payment.	Feb 2002
52.232-15	Progress Payments Not Included.	Apr 1984
52.232-17	Interest.	May 2014
52.232-23	Assignment of Claims.	May 2014
52.232-27	Prompt Payment for Construction Contracts.	Jan 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.233-1	Disputes.	May 2014
52.233-3	Protest after Award.	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004
52.236-2	Differing Site Conditions.	Apr 1984
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984
52.236-5	Material and Workmanship.	Apr 1984
52.236-6	Superintendence by the Contractor.	Apr 1984
52.236-7	Permits and Responsibilities.	Nov 1991
52.236-8	Other Contracts.	Apr 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984
52.236-10	Operations and Storage Areas.	Apr 1984
52.236-11	Use and Possession Prior to Completion.	Apr 1984
52.236-12	Cleaning Up.	Apr 1984
52.236-13	Accident Prevention.	Nov 1991
52.236-14	Availability and Use of Utility Services.	Apr 1984
52.236-15	Schedules for Construction Contracts.	Apr 1984
52.236-16	Quantity Surveys.	Apr 1984
52.236-17	Layout of Work.	Apr 1984
52.236-21	Specifications and Drawings for Construction.	Feb 1997
52.236-26	Preconstruction Conference.	Feb 1995
52.242-5	Payments to Small Business Subcontractors.	Jan 2017
52.242-13	Bankruptcy.	Jul 1995
52.242-14	Suspension of Work.	Apr 1984
52.243-4	Changes.	Jun 2007

52.243-5	Changes and Changed Conditions.	Apr 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025
52.246-12	Inspection of Construction.	Aug 1996
52.246-21	Warranty of Construction.	Mar 1994
52.247-5	Familiarization with Conditions.	Apr 1984
52.247-12	Supervision, Labor, or Materials.	Apr 1984
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	Apr 1984
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012
52.249-10	Default (Fixed-Price Construction).	Apr 1984
52.253-1	Computer Generated Forms.	Jan 1991

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.227-7000	Non-Estoppel	Oct 1966		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7022	Government Rights (Unlimited).	Mar 1979		
252.227-7023	Drawings and Other Data to Become Property of Government.	Mar 1979		
252.227-7033	Rights in Shop Drawings.	Apr 1966		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991		
252.236-7002	Obstruction of Navigable Waterways.	Dec 1991		
252.236-7007	Additive or Deductive Items.	Dec 1991		
252.236-7008	Contract Prices--Bidding Schedules.	Dec 1991		
252.236-7013	Requirement for Competition Opportunity for American Steel Producers, Fabricators, and Manufacturers.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.203-14 Display of Hotline Poster(s). (Nov 2021)

Display of Hotline Poster(s) (Nov 2021)

(a) Definition.

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c)-

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites-

- (i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and
- (ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s)	Obtain from
_____	_____
_____	_____

(Contracting Officer shall insert-

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract-

- (1) Is for the acquisition of a commercial product or commercial service; or
- (2) Is performed entirely outside the United States.

(End of clause)

52.211-10 Commencement, Prosecution, and Completion of Work. (Apr 1984)

Commencement, Prosecution, and Completion of Work (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed,

(b) prosecute the work diligently, and

(c) complete the entire work ready for use not later than 490* calendar days after notice to proceed.* The time stated for completion shall include final cleanup of the premises.

* The following days will be added to the duration of the Contract if the Government exercises the options specified below:

Option items 0005, 0006, 0007, (Repair Area 2): an additional 110 calendar days.
Option items 0008, 0009, 0010, (Repair Area 3): an additional 90 calendar days.
Calendar days will be added to the period of performance from receipt of the SF-30 "Modification of the Contract". All times for completion include final cleanup of the premises.

(End of clause)

52.211-12 Liquidated Damages-Construction. (Sep 2000)

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **\$2,377.00** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Jan 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

(1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

(2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

(3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

(4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

(5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

(6) [Reserved].

(7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

(8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

(9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

(11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(ii) Alternate I (Dec 2023) of 52.204-30.

(12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

(13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

(14) [Reserved].

(15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

(16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

(17) [Reserved]

(18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

(ii) Alternate I (Mar 2020) of 52.219-6.

(19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

(ii) Alternate I (Mar 2020) of 52.219-7.

(20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

(21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

(ii) Alternate I (Nov 2016) of 52.219-9.

(iii) Alternate II (Nov 2016) of 52.219-9.

(iv) Alternate III (Jun 2020) of 52.219-9.

(v) Alternate IV (Jan 2025) of 52.219-9.

(22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

(ii) Alternate I (Mar 2020) of 52.219-13.

(23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

(24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

(25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

(26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

(ii) Alternate I (Mar 2020) of 52.219-28.

(27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

(28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

(29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

(30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

(31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

(32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

(33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(34)

(i) [Reserved]

(ii) [Reserved]

(35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(ii) Alternate I (Jul 2014) of 52.222-35.

(36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(ii) Alternate I (Jul 2014) of 52.222-36.

(37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

(39)

(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

(41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

(ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

(42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

(43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

(44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

(45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

(46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671).

(47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

(ii) Alternate I (Jan 2017) of 52.224-3.

(48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

(ii) Alternate I (Oct 2022) of 52.225-1.

(49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

(ii) Alternate I [Reserved].

(iii) Alternate II (Jan 2025) of 52.225-3.

(iv) Alternate III (Feb 2024) of 52.225-3.

(v) Alternate IV (Oct 2022) of 52.225-3.

(50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

- (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- (ii) Alternate I (Apr 2003) of 52.247-64.
- (iii) Alternate II (Nov 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- [Contracting Officer check as appropriate.]*
- (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).
- (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Oct 2022)

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Oct 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) Waiver of evaluation preference. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

[] Offeror elects to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [____ The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-3 Hazardous Material Identification and Material Safety Data.

(Feb 2021)

Hazardous Material Identification and Material Safety Data (Feb 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert None)	Identification No.
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_____	_____
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(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons. (May 2024)

Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024)

(a) Definitions. As used in this clause-

Global warming potential means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

High global warming potential hydrofluorocarbons means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at (<https://www.epa.gov/snap/>).

Hydrofluorocarbons means compounds that only contain hydrogen, fluorine, and carbon.

Ozone-depleting substance, means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <https://www.epa.gov/snap/>.

(End of clause)

52.228-13 Alternative Payment Protections.

(Jul 2000)

Alternative Payment Protections (July 2000)

(a) The Contractor shall submit one of the following payment protections:

(b) The amount of the payment protection shall be 100 percent of the contract price.

(c) The submission of the payment protection is required within ____ days of contract award.

(d) The payment protection shall provide protection for the full contract performance period plus a one-year period.

(e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

(f) When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.

(End of clause)

52.232-5 Payments under Fixed-Price Construction Contracts.

(May 2014)

Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

Amendment 02

____ (Name)

____ (Title)

____ (Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

Physical Data (Apr 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by grab samples, dive samples, and borings. _____ [insert a description of investigational methods used, such as surveys, auger borings, core borings, test pits, probings, test tunnels].

(b) Weather conditions The contractor shall satisfy himself/herself as to the hazards likely to arise from weather conditions. _____ [insert a summary of weather records and warnings].

(c) Transportation facilities The contractor shall make his/her own investigations of the conditions of existing public and private roads and clearances, bridge load limits and other limitations affecting transportation and ingress and egress at the job site. The unavailability of facilities or other limitations thereof shall not become a basis for claims against the Government or extensions of time for completion of work. _____ [insert a summary of transportation facilities providing access from the site, including information about their availability and limitations].

(d) NA

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Defense Federal Acquisition Regulation Supplement** clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

Amendment 02

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO) /International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes

thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed repairables and DoD serially managed nonrepairables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats

specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item

identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) Definition. " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from HQDA-AT; telephone, DSN 222-9832 or commercial (703) 692-9832(Contracting Officer to insert applicable information cited in PGI 225.372-1 (DFARS/PGI view)).

(End of clause)

252.236-7001 Contract Drawings and Specifications. (Aug 2000)

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File		Drawing No.
<u>Index to Drawings</u>	<u>G-002</u>		<u> </u>

(End of clause)

252.236-7004 Payment for Mobilization and Demobilization. (Dec 1991)

PAYMENT FOR MOBILIZATION AND DEMOBILIZATION (DEC 1991)

(a) The Government will pay all costs for the mobilization and demobilization of all of the Contractor's plant and equipment at the contract lump sum price for this item.

- (1) 65 percent of the lump sum price upon completion of the contractor's mobilization at the work site.
- (2) The remaining 35 percent upon completion of demobilization.

(b) The Contracting Officer may require the Contractor to furnish cost data to justify this portion of the bid if the Contracting Officer believes that the percentages in paragraphs (a)(1) and (2) of this clause do not bear a reasonable relation to the cost of the work in this contract.

- (1) Failure to justify such price to the satisfaction of the Contracting Officer will result in payment, as determined by the Contracting Officer, of-
 - (i) Actual mobilization costs at completion of mobilization;
 - (ii) Actual demobilization costs at completion of demobilization; and

SUBMITTAL REGISTER

CONTRACT NO.
W912PL25B000X

TITLE AND LOCATION

N.A.S. Point Mugu Central Revetment Repair

CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASS S I F I C A T I O N A / E R E V I O W R	CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		DATE FWD TO APPR AUTH/	APPROVING AUTHORITY				MAILED TO CONTR/	REMARKS
						SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION	DATE RCD FROM CONTR	DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	DATE RCD FRM APPR AUTH	
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 11 00	SD-01 Preconstruction Submittals														
			Permits	1.12	G												
			Surveying Equipment And	3.1.2	G												
			Processing Software														
			Credentials and Qualifications	3.1.2	G												
			Corner Records and Record of	3.1.3	G												
			Surveys														
			Copies Of Letters And	1.10													
			Notifications														
			Field Notes	3.1.3													
			SD-05 Design Data														
			Progress Meeting Agenda	1.6.7													
			Progress Meeting Minutes	1.6.7													
			SD-06 Test Reports														
			Survey Data	3.1.6.1	G												
			SD-07 Certificates														
			Partial Pay Estimates	1.19	G												
		01 22 00	SD-07 Certificates														
			Scale Certification	1.3.1.2	G ED												
			Scale Certification	1.3.2.2	G ED												
		01 32 01	SD-01 Preconstruction Submittals														
			Project Scheduler Qualifications	1.3	G												
			Preliminary Project Schedule	3.4.1	G												
			Initial Project Schedule	3.4.2	G												
			Periodic Schedule Update	3.6.2	G												
		01 33 00	SD-01 Preconstruction Submittals														

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CONTRACT NO.
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CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASS S I F I C A T I O N A / E R E V I O W N R	CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		DATE FWD TO APPR AUTH/	APPROVING AUTHORITY				MAILED TO CONTR/	REMARKS
						SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION	DATE RCD FROM CONTR	DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	DATE RCD FRM APPR AUTH	
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 33 00	Submittal Register	1.8	G												
		01 35 26	SD-01 Preconstruction Submittals														
			Accident Prevention Plan (APP)	1.8	G SO												
			Critical Lift Plan/Standard Lift Plan	1.12.4	G SO												
			SD-06 Test Reports														
			Accident Reports	1.12.2	G SO												
			LHE Inspection Reports	1.12.3	G SO												
			Monthly Exposure Reports	1.5	G SO												
			SD-07 Certificates														
			Activity Hazard Analysis (AHA)	1.9	G SO												
			Certificate of Compliance	1.12.4													
			Hot Work Permit	1.13													
		01 45 00	SD-01 Preconstruction Submittals														
			Contractor Quality Control (CQC) Plan	1.4.2	G												
			SD-06 Test Reports														
			Verification Statement	1.11.3													
		01 50 00	SD-01 Preconstruction Submittals														
			Construction Site Plan	1.3	G												
			Traffic Control Plan	3.3.1	G												
			Haul Road Plan	2.2.1	G												
			Contractor Computer	1.6.1.4	G												
			Cybersecurity Compliance Statements														

SUBMITTAL REGISTER

CONTRACT NO.
W912PL25B000X

TITLE AND LOCATION

N.A.S. Point Mugu Central Revetment Repair

CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASS SIF CATION REVIEW	CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		DATE FWD TO APPR AUTH/ DATE RCD FROM CONTR	APPROVING AUTHORITY				MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
						SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION		DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION		
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 50 00	Contractor Temporary Network Cybersecurity Compliance Statements	1.6.6	G												
			SD-06 Test Reports														
			Backflow Preventer Tests	3.4													
			SD-07 Certificates														
			Backflow Tester	1.4.1													
			Backflow Preventers	1.4													
		01 57 19	SD-01 Preconstruction Submittals														
			Environmental Protection Plan	1.6	G PD												
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SUBMITTAL REGISTER

CONTRACT NO.
W912PL25B000X

TITLE AND LOCATION

N.A.S. Point Mugu Central Revetment Repair

CONTRACTOR

[illegible]

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)

NFPA 70 (2023; ERTA 7 2023; TIA 23-15) National
Electrical Code

NFPA 241 (2022) Standard for Safeguarding
Construction, Alteration, and Demolition
Operations

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1 (2024) Safety -- Safety and Occupational
Health (SOH) Requirements

U.S. FEDERAL HIGHWAY ADMINISTRATION (FHWA)

MUTCD (2009; Rev 2012) Manual on Uniform Traffic
Control Devices

1.2 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. When used, a code following the "G" classification identifies the office that will review the submittal for the Government. The designations are as follows: "CD" indicates Construction Division, "ED" indicates Engineering Division, "PD" indicates Planning Division/Environmental Resources, and "SO" indicates Safety Office. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Construction Site Plan; G

Traffic Control Plan; G

Haul Road Plan; G

Contractor Computer Cybersecurity Compliance Statements; G

Contractor Temporary Network Cybersecurity Compliance Statements; G

SD-06 Test Reports

Backflow Preventer Tests

SD-07 Certificates

Backflow Tester Certification

Backflow Preventers Certificate of Full Approval

1.3 CONSTRUCTION SITE PLAN

Prior to the start of work, submit for Government approval a site plan showing the locations and dimensions of temporary facilities (including layouts and details, equipment and material storage area (onsite and offsite), and access and haul routes, avenues of ingress/egress to the fenced area and details of the fence installation. Identify any areas which may have to be graveled to prevent the tracking of mud or for armor stone stockpiling. Indicate if the use of a supplemental or other staging area is desired. Show locations of safety and construction fences, site trailers, construction entrances, trash dumpsters, temporary sanitary facilities, stockpiling areas, and worker parking areas.

1.4 BACKFLOW PREVENTERS CERTIFICATE

1.4.1 Backflow Tester Certificate

Prior to testing, submit to the Contracting Officer certification issued by the State or local regulatory agency attesting that the backflow tester has successfully completed a certification course sponsored by the regulatory agency. Tester must not be affiliated with a company participating in other phases of this Contract.

1.4.2 Backflow Prevention Training Certificate

Submit a certificate recognized by the State or local authority that states the Contractor has completed at least 10 hours of training in backflow preventer installations. The certificate must be current.

1.5 DOD CONDITION OF READINESS (COR)

DOD will set the Condition of Readiness (COR) based on the weather forecast for sustained winds 50 knots (58 mph) or greater. Contact the Contracting Officer for the current COR setting.

Monitor weather conditions a minimum of twice a day and take appropriate actions according to the approved Emergency Plan in the accepted Accident Prevention Plan, EM 385-1-1 Emergency Plan requirements and the instructions below.

Unless otherwise directed by the Contracting Officer, comply with:

- a. Condition FOUR (Sustained winds of 58 mph or greater expected within 72 hours): Normal daily jobsite cleanup and good housekeeping practices. Collect and store in piles or containers scrap lumber, waste material, and rubbish for removal and disposal at the close of each work day. Maintain the construction site including storage areas, free of accumulation of debris. Stack form lumber in neat piles less than 3.3 feet high. Remove all debris, trash, or objects that could become missile hazards. Review requirements pertaining to

"Condition THREE" and continue action as necessary to attain "Condition FOUR" readiness. Contact Contracting Officer for weather and COR updates and completion of required actions.

- b. Condition THREE (Sustained winds of 58 mph or greater expected within 48 hours): Maintain "Condition FOUR" requirements and commence securing operations necessary for "Condition ONE" which cannot be completed within 18 hours. Cease all routine activities which might interfere with securing operations. Commence securing and stow all gear and portable equipment. Make preparations for securing buildings. Reinforce or remove formwork and scaffolding. Secure machinery, tools, equipment, materials, or remove from the jobsite. Expend every effort to clear all missile hazards and loose equipment from general base areas. Contact Contracting Officer for weather and COR updates and completion of required actions. Review requirements pertaining to "Condition TWO" and continue action as necessary to attain "Condition THREE" readiness.
- c. Condition TWO (Sustained winds of 58 mph or greater expected within 24 hours): Secure the jobsite, and leave Government premises.
- d. Condition ONE. (Sustained winds of 58 mph or greater expected within 12 hours): Contractor access to the jobsite and Government premises is prohibited.

1.6 CYBERSECURITY DURING CONSTRUCTION

Meet the following requirements throughout the construction process.

1.6.1 Contractor Computer Equipment

Contractor owned computers may be used for construction. When used, contractor computers must meet the following requirements:

1.6.1.1 Operating System

The operating system must be an operating system currently supported by the manufacturer of the operating system. The operating system must be current on security patches and operating system manufacturer required updates.

1.6.1.2 Anti-Malware Software

The computer must run anti-malware software from a reputable software manufacturer. Anti-malware software must be a version currently supported by the software manufacturer, must be current on all patches and updates, and must use the latest definitions file. All computers used on this project must be scanned using the installed software at least once per day.

1.6.1.3 Passwords and Passphrases

The passwords and passphrases for all computers must be changed from their default values. Passwords must be a minimum of eight characters with a minimum of one uppercase letter, one lowercase letter, one number and one special character.

1.6.1.4 Contractor Computer Cybersecurity Compliance Statements

Provide a single submittal containing completed Contractor Computer Cybersecurity Compliance Statements for each company using contractor owned computers. Contractor Computer Cybersecurity Compliance Statements must use the template published at <https://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-50-00>. Each Statement must be signed by a cybersecurity representative for the relevant company.

1.6.2 Temporary IP Networks

Temporary Contractor-installed IP networks may be used during construction. Provide Government access to Contractor furnished temporary IP networks during construction. When used, temporary contractor-installed IP networks must meet the following requirements:

1.6.2.1 Network Boundaries and Connections

The network must not extend outside the project site and must not connect to any IP network other than IP networks provided under this project or Government furnished IP networks provided for this purpose. Any and all network access from outside the project site is prohibited.

1.6.3 Government Access to Network

Government personnel, as defined, prescribed, and identified by the Contracting Officer, must be allowed to have complete and immediate access to the network at any time in order to verify compliance with this specification. If there is a Government agency responsible for network access, identify that agency.

1.6.4 Temporary Wireless IP Networks

1.6.4.1 Contractor Provided Wi-Fi Network

Provide standalone Wi-Fi network for authorized Government personnel. Network access must be available throughout the jobsite and for the entire Contract period. The Government will use the Wi-Fi service for coordination in the field and related activities. Do not attach or connect the temporary Wi-Fi network to Government networks or systems unrelated to construction activities.

Password information must adhere to requirements outlined in Paragraph PASSWORDS AND PASSPHRASES. Provide password and Wi-Fi network name (SSID) to the Contracting Officer for Government personnel access. Wi-Fi performance must be capable of handling bandwidth to support Government and Contractor activities, including drawing and model access onsite. Provide a point of contact for reporting Wi-Fi outages.

1.6.4.2 Temporary Wireless IP Networks Security

In addition to the other requirements on temporary IP networks, temporary wireless IP (WiFi) networks must not interfere with existing wireless network and must use WPA2 security. Network names (SSID) for wireless networks must be changed from their default values.

1.6.5 Passwords and Passphrases

The passwords and passphrases for all network devices and network access must be changed from their default values. Passwords must be a minimum 8 characters with a minimum of one uppercase letter, one lowercase letter, one number and one special character.

1.6.6 Contractor Temporary Network Cybersecurity Compliance Statements

Provide a single submittal containing completed Contractor Temporary Network Cybersecurity Compliance Statements for each company implementing a temporary IP network. Contractor Temporary Network Cybersecurity Compliance Statements must use the template published at <https://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-50-0> Each Statement must be signed by a cybersecurity representative for the relevant company. If no temporary IP networks will be used, provide a single copy of the Statement indicating this.

PART 2 PRODUCTS

2.1 TEMPORARY SIGNAGE

2.1.1 Bulletin Board

Prior to the commencement of work activities, provide a clear weatherproof covered bulletin board not less than 36 by 48 inches in size for displaying the Equal Employment Opportunity poster, a copy of the wage decision contained in the Contract, Wage Rate Information poster, Safety and Health Information as required by EM 385-1-1 and other information approved by the Contracting Officer. Coordinate requirements herein with 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS. Locate the bulletin board at the project site in a conspicuous place easily accessible to all employees, and in location as approved by the Contracting Officer.

2.1.2 Project Identification Signs

Erect signs within 15 days after receipt of the notice to proceed. The Project Sign Template is attached at the end of the section. Correct the data required by the safety sign daily, with light colored metallic or non-metallic numerals.

2.1.3 Warning Signs

Post temporary signs, tags, and labels to give workers and the public adequate warning and caution of construction hazards according to the EM 385-1-1. Attach signs to the perimeter fencing every 150 feet warning the public of the presence of construction hazards. Signs must require unauthorized persons to keep out of the construction site. Correct the data required by safety signs daily. Post signs at all points of entry designating the construction site as a hard hat area.

2.2 TEMPORARY TRAFFIC CONTROL

2.2.1 Haul Roads

Construct access and haul roads necessary for proper prosecution of the work under this Contract in accordance with EM 385-1-1. Construct with suitable grades and widths; avoid sharp curves, blind corners, and dangerous cross traffic. Submit haul road plan for approval. Provide

necessary lighting, signs, barricades, and distinctive markings for the safe movement of traffic. The method of dust control must be adequate to ensure safe operation at all times. Location, grade, width, and alignment of construction and haul roads are subject to approval by the Contracting Officer. Lighting must be adequate to assure full and clear visibility for full width of haul road and work areas during any night work operations.

2.2.2 Barricades

Erect and maintain temporary barricades to limit public access to hazardous areas. Barricades are required whenever safe public access to paved areas such as roads, parking areas or sidewalks is prevented by construction activities or as otherwise necessary to ensure the safety of both pedestrian and vehicular traffic. Securely place barricades clearly visible with adequate illumination to provide sufficient visual warning of the hazard during both day and night.

2.3 FENCING

Provide temporary polyethylene mesh safety fencing along the construction site and at all open excavations and tunnels to control access by unauthorized personnel. Place fencing along the landward and longshore (eastern and western) limits of active construction. Include a 100-foot minimum buffer between active construction and fencing along longshore limits. Safety fencing must be highly visible to be seen by pedestrians and vehicular traffic. All fencing must meet the requirements of EM 385-1-1. Remove the fence upon completion and acceptance of the work.

2.3.1 Polyethylene Mesh Safety Fencing

Temporary safety fencing must be a high visibility orange colored, high density polyethylene grid, a minimum of 48 inches high and maximum mesh size of 2 inches. Fencing must extend from the grade to a minimum of 48 inches above the grade and be tightly secured to T-posts spaced as necessary to maintain a rigid and taut fence. Fencing must remain rigid and taut with a minimum of 200 pounds of force exerted on it from any direction with less than 4 inches of deflection.

2.3.2 Chain Link Panel Fencing

Temporary panel fencing must be galvanized steel chain link panels 6 feet high. Multiple fencing panels may be linked together at the bases to form long spans as needed. Each panel base must be weighted down using sand bags or other suitable materials in order for the fencing to withstand anticipated winds while remaining upright. Fencing must remain rigid and taut with a minimum of 200 pounds of force exerted on it from any direction with less than 4 inches of deflection.

2.3.3 Post-Driven Chain Link Fencing

Temporary post-driven fencing must be galvanized chain link fencing 6 feet high supported by and tightly secured to galvanized steel posts driven below grade. Fence posts must be located on minimum 10 foot centers. Posts may be set in various surfaces such as sand, soil, asphalt or concrete as necessary. Chain link fencing must remain rigid and taut with a minimum of 200 pounds of force exerted on it from any direction with less than 4 inches of deflection. Completely remove fencing and posts at the completion of construction and restore surfaces disturbed or damaged

to its original condition. Locate and identify underground utilities prior to setting fence posts. Equip fence with a lockable gate. Gate must remain locked when construction personnel are not present.

2.4 TEMPORARY WIRING

Provide temporary wiring in accordance with EM 385-1-1, NFPA 241 and NFPA 70. Include monthly inspection and testing of all equipment and apparatus.

PART 3 EXECUTION

3.1 EMPLOYEE PARKING

Construction Contract employees must park privately owned vehicles in the staging areas indicated. Employee parking must not interfere with existing and established parking requirements of the Government installation.

3.2 AVAILABILITY AND USE OF UTILITY SERVICES

3.2.1 Temporary Utilities

Provide temporary utilities required for construction. **Water for construction is available from fire hydrants at or near the work site.** Materials may be new or used, must be adequate for the required usage, not create unsafe conditions, and not violate applicable codes and standards.

3.2.2 Sanitation

Provide and maintain within the construction area minimum field-type sanitary facilities in accordance with EM 385-1-1. Locate the facilities behind the construction fence or out of the public view. Clean units and empty wastes at least once a week or more frequently into a municipal, district, or station sanitary sewage system, or remove waste to a commercial facility. Obtain approval from the system owner prior to discharge into a municipal, district, or commercial sanitary sewer system. Penalties or fines associated with improper discharge will be the responsibility of the Contractor. Coordinate with the Contracting Officer and follow station regulations and procedures when discharging into the station sanitary sewer system. Maintain these conveniences at all times. Include provisions for pest control and elimination of odors. Government toilet facilities will not be available to Contractor's personnel.

3.2.3 Telephone

Make arrangements and pay all costs for telephone facilities desired.

3.2.4 Fire Protection

Provide temporary fire protection equipment for the protection of personnel and property during construction. Remove debris and flammable materials daily to minimize potential hazards.

3.3 TRAFFIC PROVISIONS

3.3.1 Maintenance of Traffic

a. Conduct operations in a manner that will not close a thoroughfare or

interfere with traffic on railways or highways except with written permission of the Contracting Officer at least 15 calendar days prior to the proposed modification date, and provide a Traffic Control Plan for Government approval detailing the proposed controls to traffic movement for approval. The plan must be in accordance with State and local regulations and the MUTCD, Part VI. Make all notifications and obtain all permits required for modification to traffic movements outside Station's jurisdiction. Contractor may move oversized and slow-moving vehicles to the worksite provided requirements of the highway authority have been met.

- b. Conduct work so as to minimize obstruction of traffic, and maintain traffic on at least half of the roadway width at all times. Obtain approval from the Contracting Officer prior to starting any activity that will obstruct traffic.
- c. Provide, erect, and maintain, at Contractor's expense, lights, barriers, signals, passageways, detours, Life Safety Signage, overhead protection, and other items that may be required by the authority having jurisdiction.
- d. Provide cones, signs, barricades, lights, or other traffic control devices and personnel required to control traffic. Do not use foil-backed material for temporary pavement marking because of its potential to conduct electricity during accidents involving downed power lines.

3.3.2 Protection of Traffic

Maintain and protect traffic on all affected roads during the construction period except as otherwise specifically directed by the Contracting Officer. Measures for the protection and diversion of traffic, including the provision of watchmen and flagmen, erection of barricades, placing of lights around and in front of equipment the work, and the erection and maintenance of adequate warning, danger, and direction signs, will be as required by the State and local authorities having jurisdiction. Provide self-illuminated (lighted) barricades during hours of darkness. All personnel working in roadways must wear brightly-colored vests or other high visibility apparel in accordance with EM 385-1-1. Protect the traveling public from damage to person and property. Minimize the interference with public traffic on roads selected for hauling material to and from the site. Investigate the adequacy of existing roads and their allowable load limit. Contractor is responsible for the repair of damage to roads caused by construction operations.

3.3.3 Rush Hour Restrictions

Do not interfere with the peak traffic flows preceding and during normal operations without notification to and approval by the Contracting Officer.

3.3.4 Dust Control

Dust control methods and procedures must be approved by the Contracting Officer. Coordinate dust control methods with 01 57 19 TEMPORARY ENVIRONMENTAL CONTROLS.

3.4 REDUCED PRESSURE BACKFLOW PREVENTERS

Provide an approved reduced pressure backflow prevention assembly at each

location where the Contractor taps into the Government potable water supply.

Perform backflow preventer tests using test equipment, procedures, and certification forms conforming to those outlined in the latest edition of the Manual of Cross-Connection Control published by the FCCCHR Manual. Test and tag each reduced pressure backflow preventer upon initial installation (prior to continued water use) and monthly thereafter. Tag must contain the following information: make, model, serial number, dates of tests, results, maintenance performed, and signature of tester. Record test results on certification forms conforming to requirements cited earlier in this paragraph.

3.5 CONTRACTOR'S TEMPORARY FACILITIES

Contractor is responsible for security of their property. Provide adequate outside security lighting at the temporary facilities. Trailers must be anchored to resist high winds and meet applicable state or local standards for anchoring mobile trailers. Coordinate anchoring with EM 385-1-1. The Contract Clause entitled "FAR 52.236-10, Operations and Storage Areas" and the following apply:

3.5.1 Administrative Field Offices

Provide and maintain administrative field office facilities within the construction area at the designated site. Government office and warehouse facilities will not be available to the Contractor's personnel.

3.5.2 Storage Area

Construct a temporary 6 foot high chain link fence around trailers and materials. Include plastic strip inserts, colored green, so that visibility through the fence is obstructed. Fence posts may be driven, in lieu of concrete bases, where soil conditions permit. Do not place or store trailers, materials, or equipment outside the fenced area(s) unless such trailers, materials, or equipment are assigned a separate and distinct storage area by the Contracting Officer away from the vicinity of the construction site but within the installation boundaries. Trailers, equipment, or materials must not be open to public view with the exception of those items which are in support of ongoing work on the current day. Stockpiling materials outside the fence in preparation for upcoming work is acceptable in areas designated by the Contracting Officer. Park mobile equipment, such as tractors, wheeled lifting equipment, cranes, trucks, and like equipment within the fenced area(s) at the end of each work day.

Keep fencing in a state of good repair and proper alignment. If the Contractor elects to traverse grassed or unpaved areas which are not established roadways with construction equipment or other vehicles, cover the grassed or unpaved areas with a layer of gravel as necessary to prevent rutting and the tracking of mud onto paved or established roadways; gravel gradation must be at the Contractor's discretion. Mow and maintain grass located within the boundaries of the construction site for the duration of the project. Grass and vegetation along fences, structures, under trailers, and in areas not accessible to mowers must be edged or trimmed neatly.

3.5.3 Supplemental Storage Area

Upon request, and pending availability, the Contracting Officer will

designate another or supplemental area for the use and storage of trailers, equipment, and materials. This area may not be in close proximity of the construction site but will be within the installation boundaries. Maintain the area in a clean and orderly fashion and secured if needed to protect supplies and equipment. Utilities will not be provided to this area by the Government.

3.5.4 Appearance of Trailers

- a. Trailers must be roadworthy and comply with all appropriate state and local vehicle requirements. Trailers which are rusted, have peeling paint or are otherwise in need of repair will not be allowed on Installation property. Trailers must present a clean and neat exterior appearance and be in a state of good repair.
- b. Maintain the temporary facilities. Failure to do so will be sufficient reason to require their removal at the Contractor's expense.

3.5.5 Safety Systems

Protect the integrity of all installed safety systems or personnel safety devices. Obtain prior approval from the Contracting Officer if entrance into systems serving safety devices is required. If it is temporarily necessary to remove or disable personnel safety devices in order to accomplish Contract requirements, provide alternative means of protection prior to removing or disabling any permanently installed safety devices or equipment and obtain approval from the Contracting Officer.

3.5.6 Weather Protection of Temporary Facilities and Stored Materials

Take necessary precautions to ensure that roof openings and other critical openings in the building are monitored carefully. Take immediate actions required to seal off such openings when rain or other detrimental weather is imminent, and at the end of each workday. Ensure that the openings are completely sealed off to protect materials and equipment in the building from damage.

3.5.6.1 Building and Site Storm Protection

When a warning of gale force winds is issued, take precautions to minimize danger to persons, and protect the work and nearby Government property. Precautions must include, but are not limited to, closing openings; removing loose materials, tools and equipment from exposed locations; and removing or securing scaffolding and other temporary work. Close openings in the work when storms of lesser intensity pose a threat to the work or any nearby Government property.

3.6 PLANT COMMUNICATIONS

Whenever the individual elements of the plant are located so that operation by normal voice between these elements is not satisfactory, install a satisfactory means of communication, such as telephone or other suitable devices and make available for use by Government personnel.

3.7 TEMPORARY PROJECT SAFETY FENCING

As soon as practicable, but not later than 15 days after the date established for commencement of work, furnish and erect temporary project safety fencing at the work site in accordance with paragraph FENCING.

Maintain the safety fencing during the life of the Contract and, upon completion and acceptance of the work, remove from the work site.

3.8 CLEANUP

Remove construction debris, waste materials, packaging material and the like from the work site daily. Any dirt or mud which is tracked onto paved or surfaced roadways must be cleaned away. Store all salvageable materials resulting from demolition activities within the fenced area described above or at the supplemental storage area. Neatly stack stored materials not in trailers, whether new or salvaged.

3.9 RESTORATION OF STORAGE AREA

a. Upon completion of the project remove the bulletin board, signs, barricades, haul roads, materials, and all other temporary products from the site. After removal of trailers, materials, and equipment from within the fenced area, remove the fence. Restore areas used during the performance of the Contract to the original or better condition. After materials have been removed from storage areas, grade, dress, and fill storage area to return the ground surface as near as practical to the condition that existed prior to construction.

b. Excess existing stone not used for resets may remain on site upon completion of the work. Store excess existing stone in an area designated by the Contracting Officer.

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STONE, CHANNEL, SHORELINE/COASTAL PROTECTION FOR STRUCTURES
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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM C88	(2018) Standard Test Method for Soundness of Aggregates by Use of Sodium Sulfate or Magnesium Sulfate
ASTM C127	(2015) Standard Test Method for Density, Relative Density (Specific Gravity), and Absorption of Coarse Aggregate
ASTM C295/C295M	(2019) Standard Guide for Petrographic Examination of Aggregates for Concrete
ASTM C535	(2016) Standard Test Method for Resistance to Degradation of Large-Size Coarse Aggregate by Abrasion and Impact in the Los Angeles Machine
ASTM D1141	(2021) Standard Practice for Preparation of Substitute Ocean Water
ASTM D123	(2015b; R 2017) Standard Terminology Relating to Textiles
ASTM D4355/D4355M	(2014) Deterioration of Geotextiles from Exposure to Light, Moisture and Heat in a Xenon-Arc Type Apparatus
ASTM D4491/D4491M	(2017) Standard Test Methods for Water Permeability of Geotextiles by Permittivity
ASTM D4533/D4533M	(2015) Standard Test Method for Trapezoid Tearing Strength of Geotextiles
ASTM D4632/D4632M	(2015a) Grab Breaking Load and Elongation of Geotextiles
ASTM D4751	(2020) Standard Test Method for Determining Apparent Opening Size of a Geotextile
ASTM D4791	(2019) Flat Particles, Elongated Particles, or Flat and Elongated Particles in Coarse Aggregate

ASTM D4884/D4884M	(2014a) Strength of Sewn or Thermally Bonded Seams of Geotextiles
ASTM D5313/D5313M	(2012; R 2013) Evaluation of Durability of Rock for Erosion Control Under Wetting and Drying Conditions
ASTM D5519	(2015) Particle Size Analysis of Natural and Man-Made Riprap Materials
ASTM D6241	(2014) Standard Test Method for the Static Puncture Strength of Geotextiles and Geotextile-Related Products Using a 50-mm Probe

1.2 DEFINITIONS

1.2.1 Revetments

The term "revetment" applies to various types of stabilization structures that are constructed along the coast approximately parallel to the shoreline. The revetments are constructed of stone or piling.

1.2.2 Shoreline Protection

Shoreline Protection is defined as a system of bedding or filter materials and stone used to protect coastlines of lakes and oceans and for harbor protection.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The designations are as follows: "CD" indicates Construction Division, "ED" indicates Engineering Division, "PD" indicates Planning Division/Environmental Resources, and "SO" indicates Safety Office. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Construction Plan; G

Stone Source Quality Control Plan; G

SD-06 Test Reports

Daily Report Of Operations

Stone Quality Test Results

Stone Gradation Reports; G

Check Surveys; G

Geotextile Tests

Daily Stone Quality Control (QC) Inspection Report

SD-07 Certificates

Stone Source(s); G

Delivery Tickets; G

Gradation Compilation; G

1.4 CONSTRUCTION PLAN

Submit a Construction Plan indicating the methods and equipment proposed to conduct all construction related operations. Submit the plan a minimum of 30 days before the start of construction operations. Include, as a minimum, the following information:

- a. Project schedule showing the order of all rock placement operations, and the anticipated dates of completion of the salient features of the work. Submit the project schedule and progress updates in accordance with Section 01 32 01 PROJECT SCHEDULE.
- b. Sequencing of construction stages and methods for access.
- c. Staging area layouts and operations.
- d. Method and equipment for transporting and placing material at the work site, and equipment that will be utilized on the work site.
- e. Protection Plan. Describe measures for moving, removing, replacing, or protecting existing features. Include methods to prevent impacting and undermining each protect-in-place feature indicated.
- f. A copy of the Daily Report Form to be used for construction operations.

1.5 DAILY REPORT OF OPERATIONS

Prepare and maintain a Daily Report of Operations and submit copies daily basis. The daily reports must document all construction related operations for all shifts in a 24-hour period.

PART 2 PRODUCTS

2.1 STONE

2.1.1 General

- a. Shape: All stone must be sub-angular to angular quarried material with a shape that assures interlocking with adjacent stone.
- b. All stone must be durable material approved in advance. Stone must be of a suitable quality to ensure permanence in the structure and in the climate in which it is to be used. Vary the quarrying, processing, loading and placing operations to produce the sizes and quality of stone specified. If the furnished stone does not fully meet all the requirements of these specifications, provide, at no additional cost to the Government, other stone meeting the requirements of these specifications.

- c. Stone must be free from cracks, blast fractures, bedding, seams and other defects that would tend to increase its deterioration from natural causes. Inspections for cracks, fractures, seams and defects must be made by visual examination during Contractor Daily Stone Quality Control Inspections.

2.1.2 Stone Sources

2.1.2.1 General

- a. Before stone is produced from any source, the source of stone must be approved. Submit the name and location of the proposed Stone Source(s) in writing within 15 days of Notice to Proceed. Include service records if available.
- b. In case an unlisted source is to be used, demonstrate that an adequate quantity of material is available and provide quality test data. The Government will conduct a stone source investigation and evaluate the quality test data provided by the Contractor to determine whether acceptable stone can be produced from the proposed source. Submit notification and schedule the stone source inspection a minimum of 60 days before initial placement. A stone source may be one or a combination of the following types of sources of stone:

(1) Stone source listed within the specifications herein.

(2) Stone source proposed by the Contractor and not listed within the specifications herein.

- c. Authorization of a stone source is not to be construed as a waiver of the right of the Government to require the Contractor to furnish stone which complies with these specifications. Materials produced from localized areas, intervals, or strata will be rejected when such materials do not comply with the specifications. Before a proposed source of stone will be considered for evaluation and approval, the Contractor must demonstrate that the source is capable of providing the quality, quantities and gradation needed and at the rate needed to maintain the scheduled progress of the work. If sufficient amounts of stone conforming to these specifications are not available from a source or sources used in the work, the Contractor must submit stone from another source for authorization.
- d. Authorization of a proposed stone source will be based on test results and stone source inspection. Government approved stone quality tests are required for all stone sources, as outlined in paragraph, Quality Compliance Sampling and Testing. The Contracting Officer will approve the source based on stone quality, stone compilation/gradation test results, the stone source inspection, and the stone source demonstration stockpile inspection.

2.1.2.2 Potential Stone Sources

- a. On the basis of information and data available to the Government, the following sources have in the past produced stone meeting the quality requirements of these specifications:

<u>Quarry Name</u>	<u>Nearest City</u>
3M Corona	Corona, California

Pebbly Beach Avalon, California

- b. Listing of a stone source is not to be construed as current or future availability of the source, authorization of all materials from the source, nor as a waiver of inspection and testing of the source. Stone produced from any source must meet all the requirements set forth in these specifications. Listing of a stone source is also not to be construed as an indication that the source can produce the total quantity or size of stone required for the project. Stone may be furnished from other sources designated by the Contractor and authorized by the Contracting Officer.

2.1.3 Stone Quality

2.1.3.1 Quality Compliance Sampling and Testing

- a. Collect a minimum of two stone samples from each separate rock-type lithology for each proposed source and perform the complete list of stone quality evaluation tests twice for each separate rock-type lithology. The complete list of stone quality evaluation tests are referred to as the full suite. The full suite of stone quality evaluation tests are presented in a table under paragraph Stone Quality Testing Requirements.
- b. During the stone source inspection, collect all stone samples at each stone source with samples selected and approved by the Contracting Officer. The laboratory technician from the MTC approved laboratory is required to collect and ship all samples to the approved laboratory at the Contractor's expense. Perform sample selection and collection on the same date.
- c. On average, one to two separate rock types exist at typical stone sources. A stone source may require between two to eight stone quality evaluation tests because of varying lithologies.
- d. Each stone sample must consist of 300 pounds each of representative stone from the proposed stone source. The quarry/stone source faces and the stockpiles to be used for the project must be examined and sampled.
- e. Acceptance of the stone source is based on the results of the stone quality evaluation tests. Submit the Stone Quality Test Results for all collected samples in one comprehensive report a minimum of 60 days before initial placement.

2.1.3.2 Materials Testing Laboratory

Perform the full suite of stone quality evaluation tests using a materials laboratory that is currently validated by the USACE Material Testing Center (MTC), as specified in Section 01 45 00 QUALITY CONTROL, paragraph Testing Laboratories, and that meets the following requirements:

- a. All stone quality tests, results and reporting are supervised and stamped by a California state registered Civil Engineer or Geologist, with a minimum of two years working experience in stone quality testing and petrography analysis.
- b. Performs all stone quality tests and results at one laboratory location that is MTC validated for the full suite of stone quality

tests.

- c. Prepares one comprehensive report of tests and results at one laboratory location.

2.1.3.3 Stone Source Quality Control

- a. Submit the Stone Source Quality Control Plan (QC Plan) a minimum of 10 days in advance of the stone source inspection meeting. The QC Plan must include a schedule for the stone source inspection and production of stone throughout the duration of the project, contact and coordination details, name and location of Materials Testing Laboratory, a description of the quantity and type of the stone source demonstration stockpiles, and a description of quarrying methods and means for preparing the stone source for this project.
- b. The QC Plan must include an example Daily Stone Quality Control (QC) Inspection Report. The Stone Source QC Inspection Report must include, at a minimum, the following information:
 - (1) Name and location of stone source.
 - (2) Name of the project stone size/category being inspected (i.e. A-7 Armor stone, etc.).
 - (3) Daily colored photographs of stone being inspected.
 - (4) Photographs of rejected stone for each day and the stockpile of all rejected stones. Rejected stone must be clearly marked with "X" and shown in photographs.
 - (5) Inspection results of quality of stone according to paragraph Stone Acceptance Criteria.
- c. Perform daily stone quality inspections during stone production and submit the Stone QC Inspection report signed by an authorized CQC Personnel as specified in Section 01 45 00. Include visual examination for cracks, fractures, seams and defects during the daily stone quality inspections. If, by visual examination, it is determined that 1 percent or more of the stone produced contains hairline cracks, then all stone produced by the means and measures which caused the fractures must be rejected.

2.1.3.4 Stone Quality Testing Requirements

- a. Subject stone to such tests as are necessary to demonstrate to the satisfaction of the Contracting Officer that the materials are acceptable for use in the work. At a minimum, the stone must meet the following full suite of test requirements:

Test	Test Method	Requirement
Petrographic Analysis	ASTM C295/C295M (4 and 5)	Good quality and acceptable for use as stone protection

Test	Test Method	Requirement
Wetting and Drying	ASTM D5313/D5313M (1 and 5)	No fracturing (2)
Specific Gravity (Bulk SSD)	ASTM C127 (5)	2.65 minimum
Absorption	ASTM C127 (5)	2.0% maximum
Magnesium Sulfate Soundness	ASTM C88 (2 and 5)	10% max loss (3)
Abrasion Loss	ASTM C535 (5 and 6)	20% max loss after 500 revolutions

b. All stone samples tested for Specific Gravity, Absorption, Magnesium Sulfate Soundness and Abrasion must be collected as a composite sample with a size range graded from approximately 3 to 4 inches diameter and have a combined total weight of approximately 150 pounds, in lieu of the size gradation and weights given in the ASTM C535, ASTM C88 and ASTM C127. In addition to the above tests, subject the stone to a petrographic and X-ray diffraction analysis, in accordance with ASTM C295/C295M (5). The stone must not contain any expansive clays.

c. Specific Testing Procedures

(1) Wetting and drying test. Perform this test using all procedures according to ASTM D5313 and in accordance with the following specific procedures:

(a) Entire sample must be carefully examined and four representative test specimen slabs selected and produced. The specimen slabs must be large enough to produce four separate cut slabs, each a minimum of 2-1/4 inches thick, with a minimum total surface area of 25 square inches on the slab side. The slab must not be less than 5 inches length per side.

(b) The test samples must be color photographed four times to show all surface features, before each slab is produced. After the slabs are produced and prior to performing the first cycle of the test, the slabs must be individually photographed to show all surface features and then examined under a low-power microscope of at least 20X magnification. All visible surface features must be noted and recorded. A length scale must be included and shown in all color photographs of slabs.

(c) Subject the slabs to a maximum of thirty cycles of wetting and drying. Two of the four slabs must be soaked in fresh tap water with 0.5 percent ethyl alcohol added by mass; the remaining two slabs must be soaked in salt water, in accordance with ASTM D1141, if a source of nearby natural salt water is not available.

(d) At intervals of every four cycles, the slabs must again be individually color photographed and examined with the low-power microscope to check for openings or movement of fractures, disintegration, spalling, splitting, flaking along edges, swelling of clays, softening of rock surfaces, heaving of micaceous minerals, breakdown of matrix material, and any other evidence of weakness developing in the rock. Observation or worsening of any

of the aforementioned flaws must be recorded and the cycle at which they are first observed must be included.

(e) After thirty cycles, the slabs and chunks must again be examined, and all changes must be noted and recorded. The test slabs, together with all particles broken-off during the test, must be oven-dried, weighed, and color photographed. The test may be terminated prior to the completion of thirty cycles, if the mass of the largest remaining fragment of the slab amounts to less than half of the mass of the original slab specimen.

(2) Weakening and loss of individual surface particles is permissible, unless bonding of the surface grains softens and causes general disintegration of the surface material.

(3) Stone which has a loss greater than the specified limit will not be accepted.

(4) The test procedure for Petrographic and X-ray Diffraction is performed according to ASTM C295/C295M, except for the following:

(a) Prepare a color, magnified photograph of each stone type using a microscope, and identify the individual minerals within the stone by labels and arrows, upon the photograph.

(b) Develop a very detailed macroscopic and microscopic description of the stone, to include all the mineral constituents, individual sizes, their approximate percentages, and mineralogical histories. Include a description of stone hardness, texture, weathering, and durability factors.

(c) Present a written summary of the suitability of stone for use as stone protection, based on the Petrographic and X-ray tests and the results of ASTM C535, in the final laboratory report on stone quality.

(5) Provide a minimum of two color photographs for each individual stone quality test. Take one of the two photos prior to commencement of each test, and the other after completion of any of each test. Include a suitable length scale in each color photograph. Label each photo "prior to testing" and "after testing" as appropriate. Label each photo with the name of the test and the name of the sample.

(6) Test procedure for LA Abrasion test. Perform this test using all procedures according to ASTM C535, but the following specific procedures for LA Abrasion testing must be performed: The entire sample must be run for 500 revolutions on rock particles in the size range graded from approximately 3 to 4 inches in diameter.

2.1.3.5 Stone Acceptance Criteria

- a. All stone is subject to approval. The Contracting Officer will perform visual inspections and measurements of the stone at any point, including before and during delivery to the job site and up to and including placement.
- b. If, by visual examination, it is determined that 1 percent or more of the stone produced contains hairline cracks, then all stone produced

by the means and measures which caused the fractures must be rejected. Observed deviations of gradation, weight or quality of stone from the specified requirements or stone considered by the Contracting Officer to be questionable will lead to the stone being rejected and re-sampling and re-testing will be required.

- (1) Detrimental hairline cracks are defined as being a minimum width of 4 mil (0.1 mm) and are continuous for one-third the dimension of at least two sides of the stone.

- c. Additional sampling and testing of the stone, including the type and quantity of sampling, is at the discretion of the Contracting Officer. Acceptance of any stone does not constitute acceptance of all stone from a source. All accepted stone must be as follows:

- (1) Accepted by the Contracting Officer from an authorized source.
- (2) Of the same lithology as the original stone from which test results or quarry records were taken as a basis for authorization of the source.
- (3) Sound, durable, hard, and free of laminations, weak cleavages, undesirable weathering, or fractures which subtend more than 1/3 of the total circumference of the stone along the plane of fracturing and which would tend to increase its deterioration from natural causes and hairline cracks that are detrimental.
- (4) Of such character that the stone will not disintegrate from the action of air, water, or the conditions of handling and placing.
- (5) Clean and free from earth, clay, refuse, or adherent coatings.
- (6) Meet all the prescribed stone acceptance criteria and pass all stone quality tests.

2.1.3.6 Stone Source Demonstration Stockpile

- a. Following submittal of the Contractor's Stone Source Quality Control (QC) Plan and selection of a source, but prior to the Government's approval of a source and the QC Plan, make arrangements to provide a pre-production demonstration stockpile for each stone source according to the stone size ranges for the project. Submit notification and schedule Government inspection of demonstration stockpile as part of the stone source inspection. All stockpiles must be evaluated for quality and gradation by the Contracting Officer. All stockpiles must be located at the source of the stone and be shaped in windrow fashion.
- b. Place stones with a weight range greater than 3 tons in a single layer with 3 foot of clear space around each stone. Turn individual stones as directed to accommodate the Contracting Officers inspection. Do not stack stones under 3 tons in weight higher than 4 feet. All stones placed in the demonstration stockpiles must be representative of the overall quality of materials in the source and should not consist of the best specimens, unless it is reasonable to determine that the source will provide the required amount of stone of the applicable size range with a degree of quality no less than that existent in the demonstration stockpile.
- c. Preselect all stones placed in the stockpile consistent with what is

described in the Contractor's QC Plan. Prepare separate stockpiles for the A-7, as applicable. The A-7 armor stone demonstration stockpile must contain a minimum quantity of 150 tons.

- d. The Contracting Officer will inspect stone in the stockpiles according to the stone quality and gradation criteria of these specifications. An entire stockpile will be rejected if more than 3 of the stones in the stockpile are rejected. If a stockpile is rejected, prepare a replacement stockpile for re-evaluation by the Contracting Officer and revise and resubmit the Stone Source QC Plan. If the replacement stockpile is rejected, the stone source will be rejected for the corresponding size range that is rejected.
- e. Stockpiles of representative reject stones from the demonstration stockpile(s) must be marked with a red "X" and set aside to a separate stockpile. The Contractor may choose a replacement stone source if a first or second stockpile is found to be unacceptable. Replacement of the stockpiles or stone sources will be at no additional cost to the Government and with no change in submittal schedule or time of completion of project.

2.1.3.7 Random Sampling

The stone produced by each source may be sampled by the Government for Quality Assurance testing at any time. The samples will be evaluated based upon petrographic analysis, specific gravity, bulk specific gravity (SSD), and absorption.

2.1.4 Quarry Operations

- a. Conduct quarry operations in a manner that produces stone conforming to the requirements specified. Producing the stone may involve selective quarrying, handling, processing, blending, and loading as necessary.
- b. Any stone found to not meet the minimum acceptance criteria as specified in paragraph Stone Acceptance Criteria must be marked with a red "X" and set aside in a stockpile separate from the acceptable stone to be used in the work.

2.1.5 Proportional Dimension Limitations

The maximum aspect ratio (greatest dimension: least dimension) of any piece of stone for size ranges, must not be greater than 3:1 when measured across mutually perpendicular axis. Not more than 25 percent of the stones within a gradation range are to have an aspect ratio greater than 2.5:1. A flat and elongated piece of stone is defined as having a ratio of width to thickness or length to width greater than 3:1. Use ASTM D4791 as a guide to perform the test.

2.1.6 Gradation

2.1.6.1 General

- a. All new stone must meet the gradation requirements as specified both at the source and as delivered to the project. Stone not meeting the required grading due to segregation or degradation during placement will be rejected. If test results indicate that stone does not meet the required grading, the hauling operation will be stopped

immediately and will not resume until processing procedures are adjusted and a gradation test is completed showing gradation requirements are met. All gradation tests are at the expense of the Contractor.

- b. New armor stone furnished for the work is designated "A-7 armor stone". A-7 designation indicates a median stone weight of 7 tons.

2.1.6.2 Gradation Testing

- a. Conduct initial gradation tests on stone source demonstration stockpile(s) during the stone source inspection and submit the results in a Stone Gradation Report, as specified in paragraph Stone Gradation Report, with the stone quality testing results. A minimum of two gradation tests for each stone size is required from the stone source demonstration stockpile.
- b. Plot the gradation results on gradation curves, all data points representative of the stone must be between the boundary limits, as defined by smooth curves drawn through specified grading limits and plotted on a mechanical analysis diagram. The individual grading curves must not exhibit abrupt changes in slope, denoting skip-grading or scalping of certain sizes. A minimum of one gradation test for each stone size from each designated stone source is required for initial acceptance of the stone source. Subsequent gradation tests will be performed if gradation by compilation effort is not achieved or if the Contracting Officer determines that weight determination of the stones is necessary on any delivery unit, according to paragraph Gradation Compilation. If gradation test results show that stone does not meet the required gradation, the hauling and placement operations will be stopped immediately and will not resume until processing procedures are adjusted and a passing gradation test is completed, showing that gradation requirements are met. All gradation tests must be at the expense of the Contractor and conducted in accordance with ASTM D5519, Test Method A.
- c. Perform gradation testing on samples selected in the presence of the Contracting Officer. Testing may be performed by the Contractor, subject to approval by the Contracting Officer. Testing must be supervised by a California registered Civil Engineer or geologist, experienced in rock gradation testing. The Government reserves the right to perform check-tests and to use the Contractor's sampling and testing facilities to perform the tests. A minimum of one gradation test for each stone size is required at the beginning of production prior to delivery of stone to the project site. A minimum of one additional test may be required for each stone class placed during the duration of the project at the discretion of the Contracting Officer.

2.1.6.3 Stone Gradation Report

Submit Stone Gradation Reports for the initial gradation tests on each stone source demonstration stockpile. Submit stone gradation reports following gradation testing performed at the direction of the Contracting Officer. The stone test gradation reports contain the following:

- a. Date of test and sample location.
- b. Size of sample in pounds and, where applicable, dimensions of the area sampled.

- c. The greatest dimension and least dimension, of each stone larger than 36 inches or 2 tons.
- d. Weight of material not measured in c) above.
- e. Weight of each stone.
- f. Gradation plot.
- g. The type of stone tested (i.e. A-7 Armor stone, etc.)
- h. Calculate the percent by weight of stone with a greatest dimension of 2-1/2 or more times the least dimension.

2.1.6.4 Gradation of A-7 Armor Stone

A-7 armor stone must be quarried, angular stone reasonably well distributed within the limits specified in the below table.

Weight of Individual Pieces (Ton)	Percent Lighter (by weight)
8.0	100
7.0	50
6.0	15
1.0	0

2.1.6.5 Gradation of C Stone

C stone must be free of fines, and reasonably well distributed within the limits specified in the below table.

Diameter	Percent Smaller (by weight)
12 inches	100
10 inches	80
#4 Sieve	5

2.1.6.6 Weight Verification

Provide a visual sample palette of stone that represents the gradations required in the specifications. This sample palette must be located on the project site and be visible to aid the Contracting Officer in determining the onsite gradation of stone during continuous Quality Assurance Inspections. Mark each stone with its measured weight in tons such that the marked weight of every stone is clearly visible.

2.1.6.7 Gradation Compilation

- a. Provide proof of gradation compliance by specifying the individual weights of each armor stone for each truck/load. Paint the weight on all stones larger than 5 tons.

- b. Submit the Gradation Compilations of the weights of individual A-7 Armor Stone delivered. Supply the compilation(s) prior to any stone being placed. If at any time the Contracting Officer determines that weight determination of the stones is necessary on any delivery unit, this action will constitute a gradation test.

2.1.7 Rejected Stone

New stone of unsuitable quality or size distribution, as required by these specifications, will be rejected. Any rejected stone must be promptly removed from the project at no expense to the Government. Any portions of the work covered by these specifications containing rejected stone will be considered incomplete.

2.2 GEOTEXTILES

2.2.1 General

Provide geotextile that is a non-woven pervious sheet of fabric as defined by ASTM D123 matching or exceeding the minimum average roll values listed in the table below. Strength values indicated in the table are for the weaker principal direction.

MINIMUM PHYSICAL REQUIREMENTS FOR DRAINAGE GEOTEXTILE			
PROPERTY	UNITS	ACCEPTABLE VALUES	TEST METHOD
GRAB STRENGTH	lb	200	ASTM D4632/D4632M
PUNCTURE	lb	125	ASTM D6241
TRAPEZOID TEAR	lb	75	ASTM D4533/D4533M
PERMEABILITY	cm/sec	1.4	ASTM D4491/D4491M
APPARENT OPENING SIZE	mm	0.18	ASTM D4751
PERMITTIVITY	sec ⁻¹	1.4	ASTM D4491/D4491M
ULTRAVIOLET DEGRADATION	Percent	50 at 500 Hrs	ASTM D4355/D4355M

2.2.2 Geotextile Fiber

Fibers used in the manufacturing of the geotextile must consist of a long-chain synthetic polymer composed of at least 85 percent by weight of polyolefins, polyesters, or polyamides. Add stabilizers or inhibitors to the base polymer, if necessary to make the filaments resistant to deterioration caused by ultraviolet light and heat exposure. Reclaimed or recycled fibers or polymer cannot be added to the formulation. Geotextile must be formed into a network such that the filaments or yarns retain dimensional stability relative to each other, including the edges. Finish the edges of the geotextile to prevent the outer fiber from pulling away from the geotextile.

2.2.3 Seams

Sew the seams of the geotextile with thread of a material meeting the chemical requirements given above for geotextile yarn or bond the seams by cementing or by heat. Attach the sheets of geotextile at the factory or another approved location, if necessary, to form sections not less than 10 feet wide. Test seams in accordance with method ASTM D4884/D4884M. The strength of the seam must not be less than 90 percent of the required grab tensile strength of the unaged geotextile in any principal direction.

2.2.4 Securing Pins

Secure the geotextile to the embankment or foundation soil by pins to prevent movement prior to placement of revetment materials. Other appropriate means to prevent movement such as staples, sand bags, and stone may also be used. Insert securing pins through both strips of overlapped geotextile along the line passing through midpoints of the overlap. Remove securing pins as placement of revetment materials are placed to prevent tearing of geotextile or enlarging holes.

2.2.5 Geotextile Tests

- a. Perform conformance testing in accordance with the manufacturers approved quality control manual. Submit manufacturer's quality control conformance test results.
- b. For needle punched geotextile, provide manufacturer certification that the geotextile has been inspected using permanent on-line metal detectors and does not contain any needles.

PART 3 EXECUTION

3.1 STONE DELIVERY

3.1.1 Waybills and Delivery Tickets for Truck or Rail Transport

Submit copies of delivery tickets to the Contracting Officer during the progress of the work. Furnish scale tickets for each load of material weighed. These tickets must include tare weight, identification mark of each vehicle weighed, date, time, and location of the loading. A master log of all vehicle loading must be furnished for each day of loading operation. File with the Contracting Officer the master log of loadings, certified waybills and certified tickets as part of the Daily Report of Operations. For each progress payment request, furnish written certification that the material recorded on the submitted certified tickets was actually used in the construction covered by the Contract.

3.1.2 Stone Stockpiling

Armor Stone which requires temporary storage must be placed within work and staging areas indicated. **If placing stone on paved areas, stockpile stones on a sand-clay-gravel or crushed stone pad constructed for the staging area and removed upon completion of the work. Pad thickness must be sufficient to protect paving.** Stone stockpiles must not exceed 12 feet in height. Notify the Contracting Officer if the Contractor elects to provide off-site stockpiling areas.

3.2 PLACEMENT OF SHORELINE PROTECTION

3.2.1 Debris

Any timbers, rubble concrete, unsatisfactory material and debris within the reaches for construction, must be removed unless otherwise directed, and upon removal become property of the Contractor. Dispose all materials in accordance with the requirements of Section 01 57 19 TEMPORARY ENVIRONMENTAL CONTROLS.

3.2.2 Construction Access on the Structure

Do not use any bituminous or semi-fluid material for use as a construction road. C stone may be used for construction of temporary access ramps. Upon completion of the work, all material placed for access purposes must be removed from the site.

3.2.3 Construction Tolerance

The finished surface and stone layer thickness must not deviate from the lines and grades shown by more than the tolerances listed below. Tolerances are measured perpendicular to the indicated neatlines. Extreme limits of the tolerances given must not be continuous in any direction for more than five times the nominal stone dimension nor for an area greater than 500 square feet of the structure surface.

NEATLINE TOLERANCES		
MATERIAL	ABOVE NEATLINE (inches)	BELOW NEATLINE (inches)
Material Removal	12	12
Armor Stone	16	16
C Stone	3	3

Remove and rework placed material not meeting these limits as directed by the Contracting Officer. Payment will not be made for excess material which the Contracting Officer permits to remain in place.

3.2.4 Construction Sequence

Notify the Contracting Officer if construction is anticipated to be interrupted. Sequence repairs in sections such that no portion of the seaward slope is without armor stone during predicted tide levels exceeding +4.0 feet Mean Lower Low Water. In the event a section of any length is left without armor stone on the seaward slope and is damaged or causes damage to a completed section, the damaged portion(s) must be replaced or reshaped as approved by the Contracting Officer with no additional payment.

3.2.5 Remove Existing Material

Remove existing material as indicated. Salvage and temporarily store existing stone in accordance with paragraph, Stone Stockpiling.

3.2.6 Placement of Geotextile

- a. Place the geotextile as indicated. At the time of installation, reject the geotextile if it has defects, rips, holes, flaws, deterioration or damage incurred during manufacture, transportation or storage.
- b. Place the geotextile with the long dimension perpendicular to the revetment and laid smooth and free of tension, stress, folds, wrinkles, or creases. Place the strips to provide a minimum width of 18 inches of overlap for each joint. Remove temporary pins as stone is placed to relieve high tensile stress which may occur during placement of material on the geotextile. Perform trimming in such a manner that the geotextile is not damaged in any way.

3.2.7 C Stone

Place C stone, to a full zone thickness, in one operation in a manner to avoid displacing the underlying material, placing undue impact force on underlying materials and supporting subsoils, or damaging geotextile fabric. Place in a manner to produce a resultant graded mass of stone with minimum voids. Rearranging of individual stones may be required to achieve this result. Placement by any method which is likely to cause segregation of the various sizes will not be permitted. Unsegregated stone must be lowered in a bucket or container and placed in a systematic manner directly on the underlying material. Casting or dropping of stone over 12 inches will not be permitted. The material surface must be finished to present an adequately even surface, free from mounds or windrows.

3.2.8 Armor Stone

Place armor stone in the locations and at the thickness shown without deviating from the lines and grades shown, including allowance for tolerances. Perform final shaping of the slope concurrently with the initial placement of the stone. Select stones and set in contact with each other so that the interstices between adjacent stones is as small as the character of the stone will permit. Interlock stones with adjacent stones by rotating and setting them for maximum contact based on their angular shapes. Three points of contact (minimum) are required between a stone and adjacent stones. The long axis of each stone must be perpendicular to the axis of the structure and slope downward toward the center of the structure. Begin placement at the bottom of the slope. Place stones in a manner to avoid displacing underlying materials or placing undue impact force on underlying material that would cause the breaking of stones. Dropping of armor stone is not permitted. The equipment used in placing the stone must be suitable for handling materials of the sizes required including the ability to place the stone over its final position before release and if necessary pick up and reposition the stone. Dragline buckets and skips are not permitted for placement of armor stone. Moving stone by drifting or manipulating down the slope is not permitted. The finished work must be a well distributed mass, free of pockets of either smaller or larger stone, having a minimum of voids and with the maximum interlocking of stones.

3.2.9 Reset Existing Stone

- a. The work consists of moving and resetting existing armor stone on the seaward side of the structure, and resetting stockpiled existing armor stone onto the landward side of the structure. "Existing Armor Stone"

is defined as existing stone that varies between approximately 1 and 10 tons. Visually inspect stone for cracks and visually compare stone size with new armor stone prior to resetting. Reject cracked stones and stones appearing smaller than 2 tons. Reset existing armor stone as indicated to achieve the required interlocking with newly placed stone. Move and reset existing armor stone in accordance with the applicable portions of paragraph, Armor Stone. All reset armor stone must meet the same placement requirements as new armor stone. A stone that breaks or splits or shatters during handling is considered a rejected stone and is to be removed from the site at the Contractor's expense. Estimated number of resets are listed below. Estimate is based on volumes of existing material to be removed.

AREA	ESTIMATED NUMBER OF RESETS
Repair Area 1	6,300
Repair Area 2	1,600
Repair Area 3	1,000

- b. The work consists of moving and resetting existing underlayer stone. "Existing Underlayer Stone" is defined as existing stone smaller than 1 ton. Reset existing underlayer stone as indicated to achieve a uniform layer of underlayer stone beneath armor stone layers.

3.2.10 Slides

In the event of the sliding or failure of any part of the structure during construction, or after its completion, but prior to its acceptance, cut out and remove the slide from the structure and then rebuild that portion of the structure with new materials or reuse the displaced materials for rebuilding if deemed appropriate. The Contracting Officer will determine the nature and cause of the slide. In case the slide is caused through fault of the Contractor, the foregoing operations must be performed without cost to the Government.

3.2.11 Quality Control Measures

Establish and maintain quality control for all work performed under this section to assure compliance with contract requirements. Maintain records of the quality control tests, inspections and corrective actions. Quality control measures must cover all construction operations including, but not limited to, the placement of all materials to the slope and grade lines shown and in accordance with this section.

3.3 SURVEYS

3.3.1 Check Surveys

Perform Check Surveys in transect format as the work progresses to verify lines, grades and thicknesses established for completed work. At least one check survey must be made for each 20 foot section as soon as practicable after completion. Approval of check survey transects does not constitute final acceptance of the work. Transects must be taken on lines 20 feet apart, measured along the structure baseline, with readings taken at a minimum interval necessary to accurately describe the structure slope and breaklines above water. Perform surveys in accordance with Section 01 11 00

SUMMARY OF WORK, paragraph CONTRACTOR SURVEYS. Submit the results of each check survey within 3 days following completion of the survey.

3.3.2 Post Construction Survey

The Government will perform a post-construction topographic survey after completion of construction. Survey results will be used to determine final acceptance as defined in paragraph FINAL EXAMINATION AND ACCEPTANCE.

3.4 REPAIR OF STREETS, ACCESS ROADS AND WORK AREAS

Restore streets, sidewalks, parking lots and access routes (used for haul routes and mobilizing equipment) and work areas to original condition upon completion of the work.

3.5 FINAL EXAMINATION AND ACCEPTANCE

- a. Final examination requires both a visual inspection of the completed work areas and a technical review of the results of the **Surveys** of the completed work areas.
- b. **As soon as practicable after the completion of the entire work, a final examination of the work will be conducted by the Contracting Officer. When the area is found to be in a satisfactory condition, it will be accepted finally.**

-- End of Section --